

23STCV24858 23STCV24858

County: los-angeles

Division: Civil Law and Motion

Department: 406

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Case Number: 23STCV24858 Hearing Date: August 12, 2026 Dept: 406

RONALD ACITO,

Plaintiff,

v.

LANCE SOARES

INCORPORATED, et al.,

Defendants.

ALEX VELASQUEZ, et al.,

Plaintiffs,

v.

LANCE SOARES INCORPORATED, et al.,

Defendants.

Case No.: 23STCV24858 (Lead)

23STCV28499

(Consolidated)

Hearing Date: August 12, 2026

[TENTATIVE]

order RE:

plaintiff ronald acito's motion for
leave to file first amended consolidated complaint

BACKGROUND

On October 11, 2023, Plaintiff
Ronald Acito filed this action (23STCV24858) against Defendants Lance Soares
Incorporated (LSI) and Lance Soares, alleging wage violations and retaliation.

On November 21, 2023, Plaintiffs Alex
Velasquez and Aaron Blocker filed a substantially similar action against the
same Defendants, Alex Velasquez, et al. v. Lance Soares Incorporated, et al.
(23STCV28499). The two cases have been consolidated, with 23STCV24858 as
the lead case.

On June 23, 2026, Plaintiff Acito filed
the instant motion for leave to file a first amended consolidated complaint
(FACC). Defendants filed an opposition on July 30, 2026. Plaintiff filed a
reply on August 4, 2026.

LEGAL STANDARD

The court may, in furtherance of justice,
and on such terms as may be proper, allow a party to amend any pleading. (Code
Civ. Proc. §§ 473(a), 576.) Courts must apply a policy of liberality in
permitting amendments at any stage of the proceeding, including during trial,
when no prejudice to the opposing party is shown. (Duchrow v. Forrest
(2013) 215 Cal.App.4th 1359, 1377.) In determining the extent of prejudice to
the opposing party, the court must consider various factors, such as whether
the amendment would delay trial or increase the discovery burden. (Demetriades
v. Yelp, Inc. (2014) 228 Cal.App.4th 294, 306.)

A motion for leave to amend a complaint
must be accompanied by a declaration that explains: (1) the effect of the
amendment; (2) why the amendment is necessary and proper; (3) when the facts
giving rise to the amended allegations were discovered; and (4) the reasons why
the request for amendment was not made earlier. (Cal. Rules of Ct., Rule

3.1324(b).)

DISCUSSION

The

proposed FACC consolidates the claims of all three Plaintiffs, adds detail regarding Acito's wage complaints, and changes Acito's adverse employment action to constructive discharge as opposed to firing. (Donahoo Decl. ¶ 4.) The reason for the amendment is to conform to proof. (Ibid.) The facts underlying the amendment were discovered in Plaintiff's recent June 2026 deposition. (Id., ¶ 6.) The amendment was not made earlier because Plaintiff's counsel required time to review voluminous discovery. (Id., ¶ 7.)

These

facts justify an amendment. Defendants' primary opposition is that the proposed FACC introduces a brand-new constructive discharge theory. However, the underlying claims and facts have not changed. Constructive discharge is still an adverse employment action and is tantamount to a firing. "Standing alone, constructive discharge is neither a tort nor a breach of contract, but a doctrine that transforms what is ostensibly a resignation into a firing." (Turner v. Anheuser-Busch, Inc. (1994) 7 Cal.4th 1238, 1251.) This is a reasonable amendment supported by the record.

Defendants

argue that the proposed amendment is a tactical response to Defendants' MSA. However, Plaintiff sent the proposed amendment to Defendants before being notified of the MSA. (Donahoo Reply Decl. ¶¶ 3-4.) Any other claimed prejudice is mitigated by the trial continuance to May 2027. This leaves sufficient time for the parties to complete discovery on the new allegations.

CONCLUSION

Plaintiff's

motion for leave to file First Amended Consolidated Complaint is GRANTED.